

This hearing has been continued to June 11, 2026.

17. 9:00 AM CASE NUMBER: MSC22-00088

CASE NAME: KALAMAS VS. JOHN MUIR HEALTH

***HEARING ON MOTION IN RE: FOR SANCTIONS**

FILED BY: KALAMAS, ALICIA

TENTATIVE RULING:

Plaintiff Alicia Kalamas moves for sanctions on the basis of purported misrepresentations by Defendant John Muir Health's (JMH) counsel in the Motion for Attorneys' Fees.

The Court is struggling to parse all of the alleged misrepresentations. To the best of its abilities, the Court believes the following are disputed: (1) that Plaintiff was "sanctioned" \$500,000 during the litigation; (2) that Plaintiff contradicted herself in stating the case was "not about the money" "despite asking for millions of dollars"; and (3) the motion was frivolous. On reply, Plaintiff focuses only on the last of these three issues.

It appears that Defendant was imprecise with its language regarding the "sanction." Plaintiff *was* ordered to pay fees relating to an Anti-SLAPP dismissal, *and* the judicial referee found that Plaintiff had engaged in misbehavior, but those two issues were separate. Counsel should be careful when using strong words, but this language does not rise to the level of sanctionable conduct under Code of Civil Procedure sections 128.5 and 128.7.

Although the Court does understand how a whistleblower plaintiff can seek extensive damages but also seek changes—and be willing to trade one for the other—that does not make Defendant's misunderstanding of such motivations frivolous or in bad faith.

Finally, the Court will at this point decline to find the attorneys' fees motion frivolous. The Court of Appeal is reviewing that order, and if, after appellate review, it appears that the motion was baseless, the Court may revisit it. This is not intended to encourage further motion practice in this case, but merely to note that such a determination is premature.

For these reasons, the Motion is **denied**.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C25-00992

CASE NAME: STEVEN NEIL VS. FORD MOTOR COMPANY

***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO PLAINTIFFS
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: NEIL, STEVEN D.

TENTATIVE RULING:

Plaintiff brings this Motion to Compel Further Responses to Requests for Production of Documents, Set One. Defendant Ford Motor Company opposes, primarily on procedural grounds, although additionally on some substantive grounds.

Neil served discovery on December 10, 2025. Ford Motor Company responded on January 9, 2026 with objections—many of which were boilerplate.¹ Ford also objected that the discovery was premature, as Neil been on telephonic availability at the mediation, and Ford believed that did not satisfy Code of Civil Procedure section 871.26. On January 16, 2026, Neil sent a letter outlining the reasons he believed Ford’s responses were unsatisfactory and improper. Ford responded on January 23, 2026, indicating that the objections were proper, but also stating that because Neil had not attended the mediation, the case was not ripe for discovery, per the Code. Without further discussion, Neil filed this Motion on March 2, 2026.

CCP 871.26

Neil argues that he complied with Code of Civil Procedure section 871.26(d)(2) because he was available by telephone. That section requires “The plaintiff and a person with settlement authority for the manufacturer shall attend the mediation in person or by remote means.” Attending mediation is more than just being on telephone standby. Mediation consists of more than receiving a settlement offer and responding to it; mediation is a facilitated conversation about a case with a neutral. If all that was required was telephonic availability, then the statute would require only settlement discussions rather than an actual mediation. Moreover, it is not as if Mr. Neil was on and off the telephone. The mediator stated that he *did not participate*. Plaintiff has failed to comply with the statute and therefore the mediation has not concluded and section 871.26(e) has not been triggered.²

Meet and Confer

Although the Court need not go any further, we will pause briefly to note that the meet and confer process was also incomplete. Again, the legislature does not require meeting and conferring so that parties can spend time and postage (or internet bandwidth) merely sending a missive in each direction without actually communicating. The legislature requires meeting and conferring so that the parties do not waste their own time and resources and that of the courts in bringing unripe motions or motions that could be resolved by a meeting of the minds. While the Discovery Act does not explicitly require verbal communications, it is rarely a bad idea for attorneys to pick up the phone or the equivalent and speak about the issues. Once discovery is triggered by the completion of mediation, there is some considerable conversation that these parties need to have about what is reasonable, necessary, and appropriate. Plaintiff cannot serve massively overbroad demands in the hopes that there is a needle in a haystack; nor can Defendant pretend that a discovery request that overlaps with privileged and confidential information is therefore unanswerable with non-privileged

¹ Plaintiff’s Declaration of Gabriel McIntire in support of this Motion attached the Form Interrogatories and responses, not the Requests for Production of Documents, so the Court is referencing the Separate Statement.

² It is of no moment that Ford has not responded to Neil’s demand. Ford also indicates Neil has not responded to its offer. This discussion would have been facilitated *by a mediation*; moreover, as stated above, it is not a settlement discussion that the legislature has required but rather a mediation attended by individuals with knowledge and authority.

and non-confidential information. Parties must endeavor to define words reasonably, and respond with reasonable definitions of there is vagueness.

Conclusion

Because, pursuant to Code of Civil Procedure section 871.26, this case has not yet mediated properly, Plaintiff's Motion is **denied**.³

19. 9:01 AM CASE NUMBER: C25-00992

CASE NAME: STEVEN NEIL VS. FORD MOTOR COMPANY

***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEFENDANTS FURTHER RESPONSES TO PLAINTIFFS FORM INTERROGATORIES, SET ONE**

FILED BY: NEIL, STEVEN D.

TENTATIVE RULING:

Plaintiff Steven Neil brings this Motion to Compel Further Responses to Form Interrogatories, Set One. Defendant Ford Motor Company opposes, primarily on procedural grounds, although additionally on some substantive grounds.

Neil served discovery on _____. Ford Motor Company responded on ___, primarily with objections—many of which were boilerplate. Ford also objected that the discovery was premature, as Neil been on telephonic availability at the mediation, and Ford believed that did not satisfy Code of Civil Procedure section 871.26. On January 16, 2026, Neil sent a letter outlining the reasons he believed Ford's responses were unsatisfactory and improper. Ford responded on January 23, 2026, indicating that the objections were proper, but also stating that because Neil had not attended the mediation, the case was not ripe for discovery, per the Code. Without further discussion, Neil filed this Motion on March 2, 2026.

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³ The Court adds one more observation, which is that Ford cited two superior court cases in its opposition. One is explicitly unpublished. The other does not state, but it is not in a reporter. California Rule of Court 8.1115 prohibits citation of unpublished cases, and the Court will admonish counsel not to repeat this error.

⁴ It is of no moment that Ford has not responded to Neil's demand. Ford also indicates Neil has not responded to its offer. This discussion would have been facilitated *by a mediation*; moreover, as stated above, it is not a settlement discussion that the legislature has required but rather a mediation attended by individuals with knowledge and authority.